

In reply, Plaintiff asserts that Individual Defendants have improperly included deposition costs that should have been stated in Item No. 4. Plaintiff also asserts that the amounts asserted in the Opposition cannot be reconciled with the MOC amounts (e.g., a \$900 transcription charge for a purported hearing on 11/5/25 that never occurred.) (Request for Judicial Notice, Ex. “1”). Further, Plaintiff is unaware of any transcripts of court proceedings ordered by the Court (Item No. 9.)

Nonetheless, Plaintiff acknowledges that \$4,051.22 are accounted for, and are not being challenged. Thus, \$4,051.22 is allowed and \$645.06 is stricken/taxed.

Item No. 13 (Models, enlargements, and photocopies of exhibits): Plaintiff challenges \$1,197.86 in photocopy costs. Costs for exhibits including costs to rent equipment, are allowed if they “were reasonably helpful to aid the trier of fact.” (CCP § 1033.5(a)(13).) Plaintiff asserts that such costs must have been presented to the trier of fact. (*Segal v. ASICS America Corp.* (2022) 12 Cal.5th 651, 665.) Plaintiff had the burden to prepare trial binders and exhibit binders for the Court and defense counsel. (Dec.Perez ¶ 16.) No models or enlargements were used at trial. (*Id.* ¶ 17.) Plaintiff concludes photocopying costs were unnecessary and should be taxed/stricken.

In response, Individual Defendants assert that they still needed to prepare trial binders, and that such costs are recoverable in the court’s discretion. (*Segal, supra.* at 668.)

In reply, Plaintiff argues that *Segal* indicates the court has discretion to award such costs where an adequate showing has been made but, Individual Defendants made no such showing. And, no invoice was provided indicating what was contained in defense counsel’s separate binders or how the \$1,197.86 was calculated. Plaintiff’s arguments are more persuasive here. Thus, this item is taxed/stricken.

Item No. 15 (Other): Plaintiff also challenges \$2,397.86 as there is no supporting evidence. In response, Individual Defendants assert that \$1,197.86 was for document production costs, which is the same item claimed in Item No. 13 above. As such, it is duplicative. They also claim the remaining \$1,200 was for their expert, which costs they “withdraw.” Thus, the entire amount on the MOC is taxed/stricken.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2306850	BALDI vs BALDI BROS., INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Final Judgment was entered on 5/26/26; the court lacks jurisdiction to compel arbitration.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2400857	A. vs MIMMS	MOTION TO STRIKE COMPLAINT ON 3RD AMENDED COMPLAINT

Tentative Ruling: Defendant Canyon Lake Property Owners Association’s (“Defendant” or “CLPOA”) Motion to Strike is denied.